

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMY DAYNA ODESSKY,

Petitioner

VS.

ADAM ODESSKY,

Respondent

) Case Number: FDI-25-800786

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amy Dayna Odessky (Mother) and Respondent Adam Odessky (Father). They share three minor children: Alyssa (DOB: 2/26/14), Julian (DOB: 2/26/14), and Aubrey (DOB: 1/28/20).
- 2) Per the Petition for Dissolution and Response and Request for Dissolution, the parties were married on 10/26/12 and separated on 8/10/24 for a marriage of eleven years and nine months.
- 3) On 6/26/26, Father filed a Request for Order seeking modification of the 8/5/25 Stipulation and Order, which provides for Father to pay \$2,400 in monthly child support and \$4,000 in monthly spousal support, effective 8/1/26. Father states he was laid off from his job as of 6/4/26 and seeks modification of support, effective 8/1/26 (pursuant to the Stipulation and Order filed 8/5/25). Attached as Exhibit B is a letter and notice regarding termination of Father's benefits and a Notice to Employee as to Change in Relationship.
- 4) On 6/26/26, Father filed an Income and Expense Declaration indicating he is unemployed as of 6/5/26.

- 1 5) On 7/17/26, the parties filed a Stipulation and Order agreeing to continue the matter from 8/27/26
2 to 9/3/26.
- 3 6) On 7/27/26, Mother filed a Request for Order seeking \$15,000 in Family Code section 2030
4 attorney's fees and costs to conduct limited and focused discovery into Father's current financial
5 condition and finalize property division for global resolution. This matter is on for hearing on
6 9/17/26 at 9 AM in Dept. 403.
- 7 7) On 7/27/26, Mother filed an Income and Expense Declaration indicating she has been
8 unemployed since 2012.
- 9 8) On 7/27/26, counsel for Mother filed a declaration in support of her request for \$15,000 in Family
10 Code section 2030 attorney's fees and costs.
- 11 9) On 8/21/26, Mother filed a Responsive Declaration in opposition to Father's 6/26/26 Request for
12 Order. Mother states that pursuant to the 8/5/25 Stipulation and Order Father pays her \$6,400 per
13 month (\$2,400 in below-guideline child support and \$4,000 in temporary spousal support minus
14 \$2,505 per month in fair market rental value of the parties' home where Mother resides). Mother
15 states Father also deducts the cost of her car insurance, which varies monthly; therefore, Mother
16 receives approximately \$3,711 total per month. Mother asserts that Father's Income and Expense
17 Declaration contains the following, plus additional, inaccuracies: item 5.a reports salary of \$0 as
18 Father's average monthly figure for the last 12 months with no attached paystubs, item 8, which
19 asks about one-time money received in the last twelve months, is blank though Father reported
20 receiving severance equal to roughly two months of pay, item 5.j, unemployment compensation,
21 is blank though Father reported receiving unemployment, and item 11 reports much less in real
22 and other property than the equity on the parties' home. Mother asserts that both sides are
23 conducting relevant financial discovery with responses due at the end of August and requests the
24 Court continue the hearing to a date in early November.
- 25 10) Father did not file a Reply Declaration.

26 **B. Findings and Order**

- 27 1) Mother's request to continue Father's Request for Order filed 6/26/26 (seeking modification of
28 support) and Mother's Request for Order filed 7/27/26 (seeking Family Code section 2030
29

attorney's fees and costs is GRANTED. Both matters are hereby **CONTINUED to 11/5/26 at 9 AM in Dept. 403.**

- 2) The Court is concerned that Father provided incomplete information in support of his Request for Order filed 6/26/26 (seeking modification of support). Father shall file and serve a current, completed Income and Expense Declaration – with all required attachments – and an update declaration briefing the Court on whether he received severance pay and is receiving unemployment compensation. The documentary evidence attached as Exhibit B to Father's 6/26/26 Request for Order appears incomplete.
- 3) The 8/5/25 child and spousal support order shall remain in full force and effect.
- 4) Mother's request for an order that Father serve verified responses and produce all documents responsive to Mother's Demand for Production of Documents, Set Two on or before a date in advance of the continuance is beyond the scope of this hearing pursuant to Family Code section 213.
- 5) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).